

CHAPTER 70

An Act to restrict the docking and nicking of horses and the importation of docked horses.

[24th November 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Save as hereinafter provided, the docking or nicking of horses is prohibited. Prohibition of docking and nicking except in certain cases.

(2) The operation of docking or of nicking may be performed in any case in which a member of the Royal College of Veterinary Surgeons, after examination of the horse, has certified in writing that the operation is in his opinion necessary for the health of the horse because of disease or injury to the tail. "

(3) Any person who performs such an operation as aforesaid in contravention of the provisions of this section or who causes or permits such an operation to be so performed, shall be liable upon summary conviction to a fine not exceeding twenty-five pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

2.—(1) No docked horse coming from a place outside the United Kingdom shall be landed from a ship or aircraft unless the landing is permitted by an officer of Customs and Excise or licensed by the Minister of Agriculture and Fisheries. Restriction on landing docked horses.

(2) An officer of Customs and Excise shall not grant any such permission as aforesaid unless he is satisfied that the horse will be exported from Great Britain as soon as practicable; and the said Minister shall not grant any such licence as aforesaid unless he is satisfied on the representation of the person applying for the licence or otherwise that it is intended that the horse shall be used for breeding purposes.

(3) Any person who—

- (a) lands a horse, or causes or permits a horse to be landed, in contravention of subsection (1) of this section; or
- (b) for the purposes of obtaining any such permission of an officer of Customs and Excise as aforesaid makes any statement that he knows to be false in a material

particular or recklessly makes any statement that is false in a material particular,

shall be liable on summary conviction to a customs penalty not exceeding twenty-five pounds or to imprisonment for a term not exceeding three months or to both such a penalty and such imprisonment.

(4) Any person who for the purposes of obtaining any such licence of the Minister of Agriculture and Fisheries as aforesaid makes any statement that he knows to be false in a material particular or recklessly makes any statement that is false in a material particular shall be liable on summary conviction to a fine not exceeding twenty-five pounds or to imprisonment for a term not exceeding three months or to both such a fine and such imprisonment.

(5) This section shall come into operation on the first day of January, nineteen hundred and fifty-five.

Interpretation.

3. In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“docking” means the deliberate removal of any bone or any part of a bone from the tail of a horse, and the expression “docked” shall be construed accordingly;

“horse” includes stallion, gelding, colt, mare, filly, pony, mule and hinny;

“nicking” means the deliberate severing of any tendon or muscle in the tail of a horse, and the expression “nicked” shall be construed accordingly.

**Application to
Scotland.**

4. In the application of this Act to the landing of any horse in Scotland, for any reference to the Minister of Agriculture and Fisheries there shall be substituted a reference to the Secretary of State.

**Short title,
citation and
commence-
ment.**

5.—(1) This Act may be cited as the Docking and Nicking of Horses Act, 1949.

(2) This Act shall, save as otherwise provided, come into operation on the first day of January, nineteen hundred and fifty.

(3) This Act shall not extend to Northern Ireland.
